

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Approved by the UNESCO Executive Board at its 207th session in October 2019

1. Introduction

The Convention against Discrimination in Education ("the Convention") and the Recommendation against Discrimination in Education ("the Recommendation"), adopted by UNESCO's General Conference in 1960, respond to UNESCO's constitutional mandate to "*advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social*". The Convention is the first legally binding international instrument providing for the **right to education** and the only one exclusively devoted to it.

The right to education is today one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community. SDG4 is rights-based and seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

The Convention has been recognized as a **cornerstone of Education 2030 agenda**. It also represents a powerful tool to advance SDG4 by ensuring effective articulation between normative and operational work.

The present Guidelines are intended to assist Member States in the preparation of national reports on the implementation of the Convention as well as the Recommendation in the context of the 10th Consultation.

2. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are obliged to incorporate its provisions into their national Constitution or domestic law. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain states might experience, in particular on account of their federal structure, in ratifying the Convention.

Bearing in mind the differences in wording and in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

Most importantly, the reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO's Constitution states that "*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*". Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

3. Participation in consultations

In light of the Education 2030 agenda, the monitoring of the implementation of the Convention and the Recommendation is of crucial importance in order to ensure an education that is truly for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. Concrete measures taken by Member States in accordance with their legal obligations under these instruments contribute to this process.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG4 on education, efforts have also been made to ensure that the specific components are included in the guidelines and that the guidelines serve as a valuable monitoring tool for measuring progress towards SDG4 targets.¹ In addition, in view of the educational challenges posed by the influxes of refugees and displacements worldwide, the guidelines provide the opportunity to report on concrete measures taken during the reporting period to include refugees and migrants in their educational systems. An emphasis is also to be placed on legal and policy framework that protects the rights of national minorities.

The reporting should be as comprehensive as possible and the process needs to be **participatory** and conducted in cooperation between ministries of education and other ministries dealing with aspects of the right to education. Relevant information from CSOs having education as their main field of activity should also be provided.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

4. General indications

The reporting period for the 10th Consultation on the implementation of the Convention and the Recommendation covers four years (2017-2020).

Member States that already reported to the 9th Consultation (2016-2017) are invited to **refer to their reports** when appropriate. Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

In the preparation of reports, Member States are kindly requested to provide brief and concise information, although they may provide details on the scope of the question if deemed necessary. In addition to a description of the constitutional, legislative, administrative and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

5. Modalities

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, two series of questions/remarks are presented:

- (1) Open-ended and closed-ended questions to be directly filled in by Member States through a participatory process. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

In their responses, Member States are encouraged to provide information in a concise manner while preserving substantive and relevant content.

¹ Please note that the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms is used specifically for monitoring SDG target 4.7. The 1960 Convention and Recommendation contribute more generally to the body of evidence for monitoring the targets of SDG4.

GENERAL INFORMATION:

Country name: New Zealand

Organization or entity responsible for the preparation of the report: Ministry of Education

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level**1. Ratification of the Convention²**

Is your country a State Party to the Convention?

☒ Yes

No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

☐ Actively under preparation

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

→ *the obstacles, whether legal, institutional, political or practical*

→ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

☐ No, not considering ratification in the near future. Please explain why:

2. **Ratification of the Protocol³ instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education**

Has your country ratified the Protocol?

☐ Yes

☒ No, please briefly explain the difficulties encountered:

3. **Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system**

In case your country is a State Party to the Convention:

- Is the Convention directly applicable in your country's domestic law following its ratification?

☐ Yes ☒ No

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☐ Yes ☒ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

New Zealand does not have a formal written constitution. The articles of the Convention must be incorporated into domestic law. The Education Act 1989 (the Education Act), as the primary piece of domestic legislation relating to education, and supporting regulations and guidelines, provide a framework for an equitable education system. The right to education is provided for by section 3 of the Education Act, which provides for the right to free primary and secondary education (for all students aged 5-19). The Education Act also provides that students who have special education needs have the same rights to access the education system as those who do not. Schools are also required, in consultation with their communities, to develop policies, plans and targets to improve the achievement of Māori (indigenous people of New Zealand) students. Policies and strategies also target other groups whose opportunities and achievement levels are below the norm.

There is a strong commitment to the provisions of the Convention in New Zealand's education system, which is intended to provide equitable opportunities for all people regardless of gender, ethnicity, or social and economic background. This intention is supported by specific policies aimed at lifting the achievement of particular vulnerable groups.

The Ministry of Education's (the Ministry) role is to lead advice to Government on the education system, and work with the education sector to ensure that the education system delivers for all New Zealanders. This means having an education system that seeks to provide every learner with the opportunity to gain skills and knowledge to realise their unique potential and succeed in their lives. Te Tiriti o Waitangi/the Treaty of Waitangi

(Te Tiriti/ the Treaty), as a founding document of New Zealand, is a crucial driver for the way the Ministry acts and engages with significant stakeholders including iwi/tribe.

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☐ Yes ☐ No

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

The Education Act establishes a right to education that is not a freestanding one enforceable through the Courts. It is a right to be enrolled and receive education created by the Education Act, and which receives external scrutiny through the Education Review Office's review processes, by the Ombudsman, the Controller and Auditor General, parliamentary processes and international review.

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?

☐ Yes ☐ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

This corresponds to the overall aspiration of SDG4 which aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.⁴

- 1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)⁵ (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in education
- ☐ Regulations prohibit discrimination in education
- ☒ Policies and programmes aim to eliminate and prevent discrimination in education
- ☐ Access to justice in case of violations of the right to non-discrimination in education
- ☒ Combatting discrimination in terms of curriculum
- ☐ Other:

Ministry's role

The Ministry's role is to lead advice to Government on the education system, and work with the education sector to ensure that the education system delivers for all. This means having an education system that seeks to provide every learner with the opportunity to gain skills and knowledge to realise their unique potential and succeed in their lives.

Te Tiriti/ the Treaty⁶, as a founding document of New Zealand, is a crucial driver for the way the Ministry acts and engages with significant stakeholders including iwi/tribes. In education, Te Tiriti/ the Treaty provides legal protection for Māori learners' rights to achieve true citizenship as descendants of their iwi/tribe through gaining a range of vital skills and knowledge, as well as protecting te reo Māori (the Māori language).

Legal framework on non-discrimination

There is a strong commitment to the provisions of the Convention in New Zealand's education system, which is intended to be equitable for all people regardless of gender, ethnicity, or social and economic background.

All education legislation in New Zealand must be read alongside the Human Rights Act 1993 and the New Zealand Bill of Rights Act 1990. Under the Human Rights Act, subject to some exceptions, it is unlawful for any educational establishment, governance body, management or teacher to discriminate against a person where so doing would result in:

- The refusal or failure to admit a person as a pupil or student; or
- The admittance of a person as a pupil or a student on less favourable terms and conditions than would otherwise be made available; or
- The denial or restricted access to any benefits or services provided by the establishment; or
- The exclusion of a person as a pupil or a student or subject him or her to any other detriment.

The prohibited grounds for discrimination are:

- Sex including pregnancy and childbirth, sexual orientation, marital or family status (including gender identity)
- religious and ethical beliefs

⁴ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁵ See: Article/Paragraph 1(1).

⁶ Treaty of Waitangi - signed in 1840 by representatives of the British Crown and certain Māori chiefs, it is considered a founding document of New Zealand. The Treaty acknowledges Māori as the indigenous people and commits the Crown to protecting Māori treasures including language, values and cultural practices.

- colour, race, ethnic or national origins
- disability
- age
- political opinion
- employment status

The Human Rights Act permits measures to be taken in good faith for the purpose of assisting or advancing persons or groups of persons disadvantaged because of discrimination to achieve an equal place with other members of the community.

Education Legislation

The two primary pieces of education legislation are the Education Act 1964 and the Education Act 1989. They sit alongside the legal framework to prevent discrimination to ensure that education in New Zealand schools is non-discriminatory, inclusive, culturally and physically safe for students, and reflects the importance of Te Tiriti/the Treaty. Section 3 provides every domestic student the right to free primary and secondary education at any State school, from the beginning of the person's fifth birthday and ending on 1 January after the person's 19th birthday. Within this period, attendance at school is compulsory from a person's 6th birthday ending on their 16th birthday. Section 8 reinforces this provision by specifying that people who have special educational needs (whether because of disability or otherwise) have the same rights to enrol and receive education at State schools as people who do not.

These rights apply to all domestic students, irrespective of their national origins. Domestic students are defined in the Education Act 1989 as a New Zealand citizen, a holder of a residence class visa, or people in a class specified by the Minister of Education by Notice in the Gazette.

Holders of a New Zealand residence class visa, granted under the Immigration Act 2009, are entitled to enrol as domestic students in New Zealand schools. These include, but are not limited to, students from Tokelau, the Cook Islands, and Niue (all classified as New Zealand citizens), and Australian citizens. The category of "domestic students" includes those who are specified in a Gazette Notice by the Minister as being treated as domestic students such as those with consular or diplomatic privileges, and a range of people in different circumstances who are to be treated as if they were not international students, such as a student who has been recognised or made a claim to be recognised as a refugee or the dependent children of work visa holders.

New Zealand accepts refugees referred from the Office of the United Nations High Commissioner for Refugees (UNHCR). Both UNHCR-referred refugees and asylum seekers have the right to access free publicly funded education. The Ministry also provides extra support, through funding, resources and expertise, to schools that are working with refugees and asylum seekers.

The Education Act 1989 contains the following provisions to prevent racism, bias and other forms of discrimination and to provide for an inclusive education system:

- the objectives of the system for education and learning require that each child and young person have an appreciation of the importance of:
 - the inclusion within society of different groups and persons with different personal characteristics
 - the diversity of society
 - cultural knowledge, identity, and the different official languages
 - Te Tiriti/the Treaty and te reo Māori
- State school charters (schools' planning documents) are required to contain sections with:

- the aim of developing, for the school, policies and practices that reflect New Zealand's cultural diversity and the unique position of the Māori culture
- the aim of ensuring that all reasonable steps are taken to provide instruction in tikanga Māori (Māori culture) and te reo Māori for full-time students whose parents ask for it
- school boards of trustees (the governance structure for State schools) must ensure that their school is a physically and emotionally safe place for all students and staff; and is inclusive of, and caters for, students with differing needs
- school boards must take all reasonable steps to:
 - ensure that the policies and practices for its school reflect New Zealand's cultural diversity and the unique position of the Māori culture
 - act in a manner that is consistent with the principles of Te Tiriti/ the Treaty
 - provide instruction in tikanga Māori (Māori culture) and te reo Māori for full-time students whose parents ask for it.

There are some restrictions on attendance at certain schools. For example, under Section 146A of the Education Act 1989, the Minister may declare any school to be a boys' school, a girls' school, or a coeducational school. This also allows the Minister, in relation to a specified single sex school, to limit the number of girls who may enrol at a boys' school, or provide for the proportion of the total roll of the school that may be girls: or to limit the number of boys who may enrol at a girls' school, or provide for the proportion of the total roll of the school that may be boys, having regard to the necessity of safeguarding the single-sex nature of the school.

Religion in State schools

Section 77 of the Education Act 1964 stipulates that in State primary schools the "teaching in every State primary school must, while the school is open, be entirely of a secular character". Section 81 of the Education Act 1964, however, stipulates that nothing in that Act shall affect religious instruction or religious observances in schools other than state primary schools.

Despite the secularity requirement of section 77, school boards of trustees may, however, close the school or any classes at it for up to an hour per week (and no more than 20 hours per year) for the purposes of allowing religious instruction to be delivered to students by volunteers. Schools remain subject to not only the Education Act 1964 but also the New Zealand Bill of Rights Act 1990 and Human Rights Act 1993, which include sections specifically on freedom of, and freedom from religion and the right not be discriminated against on the grounds of religious belief or the lack of it. Boards of trustees are accorded considerable discretion about what they choose to do by way of allowing provision of religious instruction. Regardless of the religious affiliations of board members, if a decision is made to allow religious instruction at the school, it must be provided in a non-discriminatory way and students' parents have the ability to opt them out of such instruction if they wish.

Te Tiriti o Waitangi

The Education Act 1989 includes provision for parents who wish to have their child educated in te reo Māori. The Board of trustees of State schools must take all reasonable steps to provide instruction in te reo Māori to students whose parents ask for it. In addition, section 155 of the Act provides for a designated character school to also be designated as a kura kaupapa Māori (a kura is a school, and "kaupapa Māori" is a Māori philosophy and approach). These are State schools which use te reo Māori as the principal language of instruction and operate in accordance with the Te Aho Matua philosophy. A kura kaupapa Māori is a specific type of designated character school which can be established under section 156 of the Education Act. While a designated character can include a range of

educational philosophies or approaches, additional Māori-medium immersion schools that do not adhere to the Te Aho Matua philosophy can also be established under this section of the Act.

Proposed new education legislation

The Government introduced new education legislation into Parliament in 2019 – the Education and Training Bill which, if passed, will repeal the Education Acts 1964 and 1989. The Bill retains many of the features of the Education Act 1989, however, it seeks to strengthen provisions to eradicate discrimination, racism and bias within the education sector. New features include:

- an enabling provision for the Ministers of Education and Māori-Crown Relationships: Te Arawhiti⁷ to issue a statement of expectations of education agencies with the purpose of achieving equitable outcomes for all students
- a provision that explicitly states that students have the right to attend the school at which they are enrolled for all the hours it is open
- requiring parents to confirm in writing if they wish their child to attend or take part in any religious instruction. This changes the onus from the Education Act 1964 whereby parents must opt out of such instruction
- establishing a new disputes resolution scheme for students to facilitate and promote the resolution of serious disputes between students and State schools. Serious disputes include any racism or other form of discrimination experienced by the student while at the school
- new objectives for school boards of trustees which include a requirement that boards:
 - give effect to relevant student rights set out in the new legislation, the Bill of Rights Act 1990, and the Human Rights Act 1993;
 - take all reasonable steps to eliminate racism, stigma, bullying, and any other forms of discrimination within the school
 - giving effect to Te Tiriti/ the Treaty by:
 - working to ensure that its plans, policies and local curriculum reflect local tikanga Māori, mātauranga (knowledge) Māori, and te ao (worldview) Māori; and
 - taking all reasonable steps to make instruction available in tikanga Māori and te reo Māori; and
 - achieving equitable outcomes for Māori students.

National Curriculum

New Zealand has two curricula - the New Zealand curriculum and Te Marautanga o Aotearoa. Each school is free to select which of the curricula it uses.

The New Zealand Curriculum has, as part of its vision, the development of young people who will work to create a society in which Māori and Pākehā recognise each other as full partners under Te Tiriti/ the Treaty and in which all cultures are valued for the contributions they bring. The New Zealand curriculum also acknowledges the principles of the Te Tiriti/ the Treaty and the bicultural foundations of New Zealand. It acknowledges New Zealand's official languages – te reo Māori and New Zealand Sign Language, as well as English.

The centre pillar of Te Marautanga o Aotearoa is the aspiration to develop successful learners who will grow as competent and confident learners, effective communicators in the

⁷ Te Arawhiti is a Crown agency, established in January 2019, dedicated to fostering strong, ongoing and effective relationships with Māori across Government.

Māori world, healthy of mind, body and soul, and secure in their identity and sense of belonging.

National programmes and other initiatives

The Ministry runs a wide range of programmes to help schools to eliminate discrimination, increase opportunities for inclusion and to meet their Te Tiriti/ the Treaty obligations.

In 2019, the New Zealand Government published the Child and Youth Wellbeing Strategy. One of the purposes of this strategy is to drive government policy in a unified and holistic way. One of the aims included in the strategy is that children and young people live free from racism and discrimination. The Ministry works towards achieving this, as part of its work towards realising the desired outcomes that children and young people are accepted, respected and connected.

This includes long-running programmes such as:

- the communication service that offers support if a student has difficulties with speaking, listening and understanding language
- the Ongoing Resourcing Scheme that provides support for students with the highest ongoing levels of need for specialist support to enable them to attend school, join in and learn alongside other students at school
- the Physical Disability Service that provides physiotherapists and occupational therapists to work with students so they can participate and learn alongside their peers
- School High Health Needs Fund and that provides teacher's aide support for six weeks or more if a student has a serious medical condition and needs help to attend schools/ kura safely
- scholarships for Māori and Pacific secondary school and tertiary students.

There is a wide range of Ministry programmes to support the revitalisation of te reo Māori and to assist schools to meet their Te Tiriti/ the Treaty related obligations.

The 2019 Wellbeing Budget introduced additional measures to improve the safety and inclusiveness in schools.

To assist whānau/ families to afford their education, a new scheme was introduced to reduce the need for schools in low socio-economic areas to request school donations. This is to remove financial hardship as a barrier to accessing education in State schools.

A new resource was put towards meeting the costs of 600 additional learning support coordinators to support schools/ kura to better identify and respond to the disability support needs of students.

In 2017 the Government undertook to restart Te Kotahitanga. Te Kotahitanga is a research and professional development programme that:

- supports teachers to improve Māori students' learning and achievement, enabling teachers to create a culturally responsive context for learning which is responsive to evidence of student performance and understandings
- enables school leaders, and the wider school community, to focus on changing school structures and organisations to more effectively support teachers in this endeavour.

Budget 2018 included funding to co-design with Māori an approach to address bias, strengthen equity and accelerate educational achievement and wellbeing of ākonga Māori (Māori students). This co-design process identified the importance of both critical consciousness and kaupapa Māori as essential for a transformative shift in education. This

resulted in a new programme, Te Hurihanganui, being announced and funded through Budget 2019. Funding was committed over three years to implement, support and evaluate Te Hurihanganui in six communities across New Zealand (a community includes ākonga (students), whānau (family), hapū (indigenous subtribes), iwi (tribes), community groups, early childhood centres and schools). Te Hurihanganui will address racism, strengthen equity and accelerate educational achievement and wellbeing of ākonga Māori and their whānau. It has a particular focus on ākonga Māori in English medium education from early learning to senior secondary school.

A further investment was announced for Māori medium early childhood education providers (Kohanga Reo), to support early childhood learning outcomes for Māori students.

The Ministry supports teachers to develop their Māori language skills and classroom practice through Te Ahu o te Reo Māori. This is a key component of the Maihi Karauna – the Crown’s Strategy for Māori Language Revitalisation 2019 – 2023.

In 2019, the Ministry piloted the #notpartofmyworld toolkit in 1,250 classrooms across New Zealand, for year 3-8 students. The #notpartofmyworld toolkit acknowledges that racism exists in our country and sets a collaborative classroom goal of excluding racist practices from our everyday world. Teachers, kaiako, ākonga and learners co-create a classroom commitment around valuing diversity, building empathy and moving towards the goal of reducing racism.

The Ministry also developed The Same Game, which was provided to all English medium classrooms for year 1-3 students. This includes a big book for “reading to” students, a set of resources, audio, and teacher notes, intended to help foster the curriculum principles of diversity and inclusion. The Same Game is intended to support students to recognise and appreciate their similarities and differences.

To monitor wellbeing at schools, schools can access the free Wellbeing@School Self-Review Toolkit. This provides anonymous surveys for students and teachers with a wide range of questions. Some of the questions included can help schools to monitor and reflect on inclusion and discrimination. These include questions about whether students think teachers are fair and have high expectations of all students, and whether teachers get on well with students from different cultures and backgrounds.

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ➔ *Non-discrimination in the admission of pupils to educational institutions*
- ➔ *Non-differential treatment, including of foreign nationals resident in your country*

See above in 1.1.

1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

- ☐ Constitutional laws and/or legislation guarantee equal access to education
- ☐ Regulations ensure equal access to all levels and types of education
- ☐ Policies and programmes ensure equal access to all levels and types of education
- ☐ Other:

See above in 1.1.

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b⁸

1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

- | | |
|---|--|
| ☐ Providing financial incentives and fellowships | ☒ Providing auxiliary assistance |
| ☐ Providing positive or affirmative action measures | ☒ Adapting education infrastructure |
| ☒ Ensuring inclusion in mainstream schools for all learners | ☐ Adapting curricula and methods |
| ☐ Training teachers on inclusive education | ☐ Providing language classes to newcomers (e.g. refugees) |
| ☐ Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET) | ☐ Eliminating administrative barriers to education ⁹ |
| ☐ Providing re-entry programmes for young mothers | ☒ Providing flexible learning pathways |
| ☐ Eliminating all barriers for pregnant girls or young mothers in education | ☒ Valuing diversity in schools |
| ☐ Other: | ☐ Combatting stereotyping and stigmatisation |

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

Inclusive education is founded in the Education Act 1989, which states: "people who have special education needs (whether because of disability or otherwise) have the same rights to enrol and receive education at state schools as people who do not".

New Zealand schools also have binding obligations to include and provide a quality education for all learners under the New Zealand Disability Strategy, and the United Nations Convention on the Rights of Persons with Disabilities.

A wide range of measures are taken to support inclusive education, including targeted provision of resources in schools to those with additional learning support needs through the Ongoing Resourcing Scheme.

⁸ Which calls on states to "substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes".

⁹ Administrative barriers to education include, amongst others, lack of identity papers or birth certificates required to enrol.

In June 2020, the New Zealand Government announced it will be providing access to free sanitary products in all state schools and kura. This is intended to reduce barriers to education, promote positive gender norms, improve attendance and engagement and mitigate the impacts of socioeconomic disadvantage.

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

Yes ☐ No ☐

Please provide reference to the relevant laws and provisions:

In 2018 the Marriage (Court Consent to Marriage of Minors) Amendment Bill was passed. This requires 16 and 17 year olds who want to marry, to enter into a civil union, or to enter into a de facto relationships to obtain the consent of a Family Court Judge.

The objective of the legislation is to prevent forced marriages and relationships. Until the passage of the new law, parental consent was needed by 16 and 17 year olds for marriage and civil unions, while a de facto relationship required written consent from each of the participant's guardians if it was to be legally recognised.

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized "the right to education during early childhood as beginning at birth" (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation¹⁰. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to "the provision of at least one year of free and compulsory pre-primary education".

- Is compulsory and free of charge pre-primary education available in your country?

☐ Pre-primary education is compulsory: Please provide the age of enrolment and duration:

☒ Pre-primary education is free of charge for all: Please provide the duration:

The ECE Funding Subsidy is the primary form of Government funding for licensed early childhood education (ECE) services. Through the Subsidy, attendance for all children aged 0-5 is subsidised up to six hours per day, to a maximum of 30 hours per child per week.

¹⁰ Which states that "ECCE is part of the right to education and the main foundation for holistic human development".

For children aged 3 and over, 20 out of the 30 hours can be funded via 20 Hours ECE. Through 20 Hours ECE, parents of 3, 4 and 5 year olds are not charged fees for up to 20 hours of ECE per week.

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

Māori and Pacific children and children from low socio-economic backgrounds have lower participation rates in ECE. The total prior participation rate for all children starting school in the 12 months ending in March 2020 was 97.1%. The prior participation rate is lower for Māori children at 95.4%, Pacific children at 93.3%, and for children in low decile schools at 94.3%.

To improve access to ECE for these groups, the government provides a range of additional funding and programmes:

- The Ministry subsidises all children aged 0-5 who attend ECE services. Each child's attendance is subsidised up to six hours per day, to a maximum of 30 hours per child per week. 20 of these 30 hours are subsidised at a higher rate for children aged 3-5 years old, so their parents are not charged fees for up to 20 hours of ECE per week. Government expenditure on universal subsidies for ECE in 2018/19 was \$1.8 billion.
- The Ministry currently has two forms of targeted funding in ECE (Equity Funding and Targeted Funding for Disadvantage) which aim to improve access to ECE for families from low socio-economic backgrounds. In 2018/19, the government spent \$66.2 million on Equity Funding and Targeted Funding for Disadvantage.
- Families on a low or middle income may also be eligible for the Childcare Subsidy provided through the Ministry of Social Development (MSD). The Childcare Subsidy reduces the cost of ECE for families who meet the income thresholds. Families that are working, studying or on an approved training course may be able to get reduced fees for up to 50 hours of ECE a week. In 2017/18, MSD spent \$133.5 million on the Childcare Subsidy.
- The Ministry's Targeted Assistance for Participation provides grants, incentives and partnership opportunities to help establish new early learning services and child spaces in communities where new child places are needed most and are not being created quickly enough.
- Engaging Priority Families delivers support programmes for 3 and 4-year-olds and their families, aimed at leading to enrolment in ECE, regular participation in ECE, support for learning at home and a successful transition to school.

The Poipoia te Mokopuna programme aims to reach Māori under three years of age not currently participating in early childhood education or kōhanga reo and their whānau. Organisations are contracted to design and implement a Poipoia te Mokopuna early learning programme which is tailored to their communities and is underpinned by the principles of Te Whāriki (Early Childhood Curriculum) and Ka Hikitia (the Māori education strategy).

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide "12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory."

Primary education

- Is primary education compulsory in your country?

☒ Yes ☐ No

Please indicate the current duration period of compulsory education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

Schooling is compulsory from age 6-16. In the majority of schools, a child can start school on the day they turn 5 years old (they don't have to wait until the start of a new school year). However, some schools have a policy of starting children at school together as a group at the start of each term (cohort entry).

- Is primary education available free of charge to all?

☒ Yes: Please provide the duration and indicate the extent to which it is.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

A child's education is free between the ages of 5 and 19 at state schools and kura (schools that are government owned and funded) if they are a New Zealand citizen or a permanent resident. The education system for schools is made up of 13 Year levels. A child's primary education starts at Year 1 and goes to Year 8 (around 5-12 years of age). The [Education \(Domestic Students\) Notice 2013](#) gives the definition of the term "domestic student" as in the Education Act 1989.

School donations: The Education (School Donations) Amendment Act 2019 came into force on 22 October 2019. This Act supports the school donations scheme which was announced as part of the Budget 2019 package. From the 2020 school year, Decile¹¹ 1-7 State and State-integrated schools will be able to choose to receive a \$150 per student, per year payment if they agree not to ask parents and caregivers for donations. Although school donations are voluntary, many families can feel under pressure to pay them and this can place pressure on household budgets. This initiative is designed to alleviate that pressure and expectation. Decile 8-10 schools and those who choose not to opt-in can still ask for donations but payment cannot be compelled or enforced.

School supplies: It is advised that parents/ caregivers should be prepared to pay for stationery (such as exercise books, pens, pencils), school uniforms and before-school and after-school care if it is needed. If a parent/caregiver cannot afford a school uniform or stationery or care outside of school hours, this should not hold back the child's education. In the first instance it is recommended that the parent/ caregiver talk to the school as they might be able to get financial assistance. Work and Income New Zealand (WINZ) oversees the Out of School Care and Recreation Subsidy, a payment which helps families with the costs of before- and after-school programmes. WINZ also oversees the School and Year

¹¹ School deciles indicate the extent the school draws their students from low socio-economic communities. The Ministry uses deciles to target funding to help them overcome any barriers to learning that students from lower socio-economic communities might face. For more information refer to <https://www.education.govt.nz/school/funding-and-financials/resourcing/operational-funding/school-decile-ratings/>

Start-up Payment, which is available to carers of someone else's child to help with the school-related costs that mostly happen at the beginning of the year.

School transport: The Ministry provides school transport assistance to help parents overcome barriers to education and meet their responsibility to get their children to school. The Ministry may provide assistance where distance and/ or accessibility may be a barrier for students attending the closest school they can enrol at. School transport assistance is usually a place on a school bus. Students might instead/ also be eligible for a conveyance allowance to contribute to the cost of transporting them to school.

☐ No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ Yes ☐ No

- Please briefly provide information on the reforms taken:

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

☒ Yes: Please provide the duration and describe the extent to which it is.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

Please refer to answers provided previously above for **primary education**.

Exams: The National Certificate in Educational Achievement (NCEA) qualifications are organised by the New Zealand Qualifications Authority (NZQA). NCEA is the national senior secondary school qualification. In 2019 the Minister of Education announced that families of secondary students no longer have to pay fees to enter NCEA and New Zealand Scholarship. This change removed financial barriers and ensures all the credits received towards NCEA are visible in a student's Record of Achievement. There is no charge for domestic student entry for all NCEA standards and any Scholarship subject they may wish to sit.

Technical and vocational secondary education and training in NZ: Learners can access technical and vocational training while at school. Vocational education is delivered in schools, or in partnership with secondary schools and tertiary providers, for example, through Trades Academies, Gateway (both part of the Government's Youth Guarantee Programme) and the Secondary Tertiary Alignment Resource (STAR).

Trades Academies funding supports trades and technology programmes for senior secondary school students to provide a transition between school and tertiary education. Trades Academies teach pre-trade courses to Year 11-13 learners. In 2019 the Minister of Education announced improvements to trades training programmes, expanding the number of Trades Academy places to help more senior secondary school students into employment, and simplifying the way Māori and Pasifika Trades Training students access the resources

they need. The Government is prioritising an extra 1,060 Trades Academy places from 2019. The number of students that participated in Trades Academies decreased from a peak of 7,035 students in 2017 to 6,785 students in 2018.

Gateway funding enables secondary schools to give senior students access to structured workplace learning integrated with school-based learning. Students' learning is assessed in the workplace and they can achieve credits on the New Zealand Qualifications Framework (NZQF) towards their NCEA. The number of learners accessing Gateway programmes in 2018 was 2 percent lower than 2017 (13,765 students).

STAR delivers additional operational grant funding to all state and state-integrated school with Year 11-13 students. The funding assists schools to provide students with relevant, coherent learning experiences aligned to the Vocational Pathways.

The Government's Reform of Vocational Education (RoVE) will also have an impact on secondary schools. It is expected that current collaboration and pathways between schools and tertiary education will continue, and be enhanced, by RoVE. Opportunities for strengthening secondary-tertiary learning are also being considered through the NCEA review: <https://conversation.education.govt.nz/conversations/ncea-review/>

- No: What are the measures your government intends to take to ensure free secondary education?

- Is secondary education (middle/high) compulsory in your country?

☒ Yes ☐ No

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

Schooling is compulsory from age 6-16. A child's secondary education goes from Year 9 to Year 13 (around 13-17 years of age).

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ☒ No ☐

- Please provide reference to the relevant laws and provisions:

There is no minimum age of entry into employment in New Zealand, however there are age restrictions on where a young person can work and the type of work that employee can carry

out. There are also restrictions on hours worked: if an employer employs any school-aged students, their work hours must be outside of school hours only and not between 10pm and 6am, including in times that interfere with the student doing school work. It is unlawful for businesses to employ school-aged students during school hours under Section 30 of the Education Act, unless they have a certificate of exemption. There is no minimum wage for employees who are under 16 years of age.

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3¹², and target 4.4¹³.

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹⁴ to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training
- ☒ Regulations prohibit discrimination in higher education, including technical and vocational education and training
- ☒ Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training

☐ Other:

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ➔ *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*
- ➔ *Non-differential treatment, including of foreign students*

Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation

Legal:

Education Act 1989

- Under this Act, an express duty is placed on the councils of institutions (colleges of education, polytechnics, specialist colleges, universities and wānanga¹⁵) to ensure that the institution does not discriminate unfairly against any person (section 181(d)).
<http://www.legislation.govt.nz/act/public/1989/0080/latest/DLM184136.html>

¹² Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

¹³ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

¹⁴ See: Article/Paragraph 1(1).

¹⁵ A wānanga is a publicly-owned tertiary institution that provides education in a Māori cultural context.

Human Rights Act 1993

- Under this Act, discrimination in access to educational establishments is prohibited (section 57).
<http://www.legislation.govt.nz/act/public/1993/0082/latest/DLM304637.html>
- The prohibited grounds of discrimination are included within section 21.
<http://www.legislation.govt.nz/act/public/1993/0082/latest/DLM304475.html#DLM304475>

New Zealand Bill of Rights Act 1990

- This Act sets out the right to freedom from discrimination on the grounds of discrimination as detailed in the Human Rights Act 1993 (section 19).
<http://www.legislation.govt.nz/act/public/1990/0109/latest/whole.html#DLM225519>

Regulatory:

Education (Pastoral Care of Domestic Tertiary Students) Interim Code of Practice 2019

- Under the Code, tertiary education providers are required to have practices for recognising and responding to discrimination (clause 15(a)).
<http://www.education.govt.nz/assets/Documents/Further-education/Interim-Code-of-Practice-as-tabled-in-the-House-of-Representatives.pdf>

Policy & programmes:

Ōritetanga – Learner Success

- The Learner Success framework (developed by the Tertiary Education Commission (TEC)) aims to promote parity across New Zealand's tertiary education system, with a particular focus on Māori and Pacific learners. <https://www.tec.govt.nz/focus/our-focus/oritetanga-tertiary-success-for-everyone/>

Ka Hikitia –

- Ka Hikitia is a cross-agency strategy for the education sector. The agencies include: Ministry; Te Aho o Te Kura Pounamu; Education New Zealand; Education Review Office; New Zealand Qualifications Authority; The Teaching Council Aotearoa New Zealand; TEC; New Zealand School Trustees Association. The education sector includes all early learning, schooling, and tertiary education provision. It sets out how Government will work with education services to achieve system shifts in education and support Māori learners and their whānau, hapū and iwi to achieve excellent and equitable outcomes and provides an organising framework for the actions agencies will take.
<https://education.govt.nz/our-work/overall-strategies-and-policies/ka-hikitia-ka-hapaitia>

Tau Mai Te Reo

- Tau Mai Te Reo is a cross-agency strategy for the education sector. It sets out the goals that Government is seeking to achieve and provides a framework for coordinating programmes and services that support Māori language in Māori medium and English medium education. Tau Mai Te Reo is part of the education sector's contribution to the Maihi Karauna. The Maihi Karauna is the whole-of-government Māori Language Strategy. The Maihi Karauna sets out a vision for te reo Māori in the future. It outlines what the Crown will do to support a strong, healthy,

thriving Māori language in New Zealand; Kia māhorahora te reo – everywhere, every way, for everyone, every day.

<https://education.govt.nz/our-work/overall-strategies-and-policies/tau-mai-te-reo/>

- Ka Hikitia and Tau Mai Te Reo are companion strategies and should be read in conjunction with each other. Ka Hikitia is a strategy for all Māori learners, while Tau Mai Te Reo is a strategy for all learners.

Whakapūmautia, Papakōwhaitia, Tau Ana

- This is the framework for conducting excellent education relationships with iwi with the shared goal of Māori achieving education success as Māori.
<https://www.pmawards.education.govt.nz/assets/Uploads/Resources/c1cf8e1554/Whakapumautia-Papakowhaitia-Tau-ana.pdf>

Action Plan for Pacific Education 2020-2030

- The Action Plan for Pacific Education 2020-2030 has a vision that diverse Pacific learners and their families feel safe, valued and equipped to achieve their education aspirations. It outlines the actions the Government has committed to achieve this vision and signals how early learning services, schools and tertiary providers can achieve change for Pacific learners and their families.
<https://education.govt.nz/our-work/overall-strategies-and-policies/pasifika-education-plan-2013-2017/>

Kōrero Mātauranga / Education Conversation

- This is a Ministry initiative to hear the voices of people that have not traditionally been heard in discussions about the future of education. This includes, for instance, young people with disabilities, ethnic communities, and Pacific communities.
<https://conversation.education.govt.nz/conversations/education-conversation/>

The Tertiary Education Strategy

- This Strategy sets out the Government's long-term strategic direction and current and medium-term priorities for tertiary education. It contains some inclusion and equity goals, including those that fall under priorities 2 and 3 (getting at-risk young people into a career and boosting achievement of Māori and Pacific students, respectively).
<https://www.education.govt.nz/further-education/policies-and-strategies/tertiary-education-strategy/>

University Investment Plans

- Universities have to submit Investment Plans to the TEC to obtain funding. These Plans have to include evidence that the university is well-placed to respond to a growing Māori and Pacific population, as well as other inclusion and equity factors.
<https://www.tec.govt.nz/assets/Forms-templates-and-guides/Plan-Guidance-Final-Dec-2019.pdf>

Māori Crown Partnerships

- The New Zealand public service is expected to consider and support Māori Crown partnerships in the development of policy, as well as have a focus on improving outcomes for Māori. <https://tearawhiti.govt.nz/assets/Maori-Crown-Relations-Roopu/cf1e519f93/Proactive-release-Building-Closer-Partnerships-with-Maori.pdf>

Government strategy and Action Plan for disability

- The New Zealand Disability Strategy (2016-2026) and its associated Action Plan (2019-2023) have the vision of New Zealand as a non-disabling society – a place where disabled people have an equal opportunity to achieve their goals and aspirations, and all of New Zealand works together to make this happen. The Strategy and Action Plan have outcomes and actions relating to inclusive education.

<https://www.odi.govt.nz/nz-disability-strategy/> <https://www.odi.govt.nz/disability-action-plan-2/>

Non-differential treatment, including of foreign students

Regulatory:

Education (Pastoral Care of International Students) Code of Practice 2016

- This Code is intended to support Government's objectives for international education by: requiring signatories to take all reasonable steps to protect international learners; and ensuring that international learners have a positive experience in New Zealand that supports their educational achievement.

<https://www.nzqa.govt.nz/providers-partners/education-code-of-practice/>

Policy and programmes:

International Education Strategy

- The Strategy aims to create an environment where international education can thrive and provide economic, social and cultural benefits for all New Zealand. It has three overarching goals, including: delivering an excellent education and student experience; achieving sustainable growth; and developing global citizens.

<https://enz.govt.nz/about-enz/international-education-strategy/>

International Student Wellbeing Strategy

- The international Student Wellbeing Strategy, sets out focus areas for government agencies that are working to support international learners. It is designed to protect and enhance New Zealand's reputation as a safe and welcoming study destination, by building on the work agencies already have underway.

<https://www.education.govt.nz/our-work/overall-strategies-and-policies/international-student-wellbeing-strategy/>

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make "higher education equally accessible to all on the basis of individual capacity". Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by "every appropriate means, and in particular by the progressive introduction of free education".

- ☐ Higher education is generally free of charge
- ☒ Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience
- ☒ Higher education is accessible through financial incentives and scholarships
- ☒ Higher education is accessible through positive or affirmative action measures
- ☒ Higher education is accessible through credit transfer system between states
- ☒ Other:

Fees Free, Māori and Pasifika Trades Training funding, Equity funding, and Special Supplementary Grant for Special Education (further detail provided below).

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

Admission to higher education

- Admission is generally automatic, on the condition that the learner gains University Entrance (UE) and meets the other criteria required for their course.
<https://www.universitiesnz.ac.nz/new-zealand-students/get-admission-university>
- A person without UE can apply for special admission if they are over 20 years old and a New Zealand or Australian citizen (or permanent resident).
<https://www.universitiesnz.ac.nz/new-zealand-students/get-admission-university/other-school-leaver-qualifications>

Student loan and allowance

- Most learners can apply for an interest-free student loan through StudyLink.
<https://www.studylink.govt.nz/starting-study/thinking-about-study/how-to-pay-for-study.html#null>
- Some learners are eligible for a student allowance – a weekly payment to help learners pay for living expenses while they are studying. This money does not have to be paid back.
<https://www.studylink.govt.nz/products/a-z-products/student-allowance/index.html>

Positive / affirmative action programmes

- Specific programmes dedicated to promotion of equity often sit at the tertiary education provider level, with the Ministry shaping policy to influence the direction of these programmes (e.g. via the Tertiary Education Strategy). [Tū Tauira Hauora](#) and [UniPrep](#) are examples. Within universities, there are over [300 initiatives](#) aiming to enhance the success of Māori.

Credit transfer between states

- NZQA Qualifications Recognition Services team assesses overseas tertiary and vocational upper-secondary qualifications to determine if they can be recognised in New Zealand and compared to a level and qualification type on the NZQF.
<https://www.nzqa.govt.nz/qualifications-standards/international-qualifications/>.
- NZQA also has a system for recognition of learning for credit between New Zealand-based education providers.
<https://www.nzqa.govt.nz/qualifications-standards/recognising-learning/>

Fees Free

- This initiative allows first-year learners to receive one year of tertiary study or two years' training without fees.
<https://www.feesfree.govt.nz/>

Māori and Pasifika Trades Training funding

- This funding provides fees-free tertiary places for Māori and Pasifika learners aged between 16-40 to achieve in pre-trades training and progress to sustainable trades or trades-related employment (including apprenticeships), other successful industry training programmes at level 3 and above on the NZQF, and managed apprenticeships.
<https://www.tec.govt.nz/funding/funding-and-performance/funding/fund-finder/maori-and-pasifika-trades-training/>

Equity funding

- This funding supports tertiary providers to improve access, participation and achievement of Māori and Pacific learners at higher levels of the tertiary education system, as well as participation and achievement of learners with disabilities.
<https://www.tec.govt.nz/funding/funding-and-performance/funding/fund-finder/equity-funding/>

Special Supplementary Grant for Special Education

- The grant is designed to make access to tertiary education easier for people with special needs. It helps provide additional tutorial support (above normal staffing levels) to work with learners who need more assistance.
<https://www.tec.govt.nz/funding/funding-and-performance/funding/fund-finder/ssg/>

2.4 Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☒ Provision of literacy programmes
- ☒ Provision of appropriate learning and life-skills programmes
- ☒ Provision of free of charge learning opportunities
- ☒ Provision of flexible learning pathways
- ☒ Provision of professional training and qualifications
- ☐ Other:

- Please elaborate further on the measures taken:

NOTE. New Zealand has a tertiary education system that is open entry, and is funded in a way that is not restricted by learner age.

Supporting foundation level education – Student Achievement Component (SAC) Level 1 & 2 funding

- This funding aims to provide essential foundation skills at a low cost to learners by funding tertiary education organisations that are best able to meet the needs of these learners.
<https://www.tec.govt.nz/funding/funding-and-performance/funding/current-funds/>

Literacy and Numeracy

- The Tertiary Education Strategy has the priority '*Improving adult literacy and numeracy*' (Priority 4). To help improve these basic skills, the Government has focused on improving the targeting, uptake and quality of study at levels 1 & 2 (i.e. SAC level 1 & 2 – see above).
<https://www.education.govt.nz/further-education/policies-and-strategies/tertiary-education-strategy/>
- The TEC has dedicated funds to aid in lifting adult literacy and numeracy skills, for instance:
 - Intensive Literacy and Numeracy Fund – this supports the intensive provision of high quality, fees-free literacy and numeracy learning opportunities for learners with low-level literacy and numeracy skills.
<https://www.tec.govt.nz/funding/funding-and-performance/funding/fund-finder/intensive-literacy-and-numeracy/>
 - Tertiary Education Organisation-led Workplace Literacy and Numeracy Fund – this supports the provision of literacy and numeracy programmes for employees to increase their literacy and numeracy skills, and contribute to workplace productivity.
<https://www.tec.govt.nz/funding/funding-and-performance/funding/fund-finder/teo-led-workplace-literacy-numeracy-fund/>
 - Employer-led Workplace Literacy and Numeracy Fund – this supports the provision of literacy and numeracy programmes for employees to increase their literacy and numeracy skills, and contribute to workplace productivity.
<https://www.tec.govt.nz/funding/funding-and-performance/funding/fund-finder/employer-led-workplace-literacy-and-numeracy-fund/>

Fees Free

- [detailed in earlier section]

Māori and Pasifika Trades Training funding

- [detailed in earlier section]

Adult Community Education (ACE)

- ACE includes community-based education, foundation skills, and pathways into other learning opportunities that meet community learning needs. The three priorities of ACE funding are to: target learners whose initial learning was not successful; raise foundational skills; and, strengthen cohesion, enhancing a learner's ability to

participate in society and economic life. <https://www.tec.govt.nz/funding/funding-and-performance/funding/fund-finder/ace/>

Dual Pathways Pilot

- This pilot aims to improve the transition of students from school to work by providing a wider range of learning opportunities making better use of the education network, and creating clear pathways from school to work and study. It transitions students from secondary school to employment-based tertiary education.
<https://www.tec.govt.nz/funding/funding-and-performance/funding/fund-finder/dualpathways-pilot/>

Trade Academies funding

- This funding supports trades and technology programmes for senior secondary school learners to provide a transition between school and tertiary education.
<https://www.tec.govt.nz/funding/funding-and-performance/funding/fund-finder/youth-guarantee/>

Gateway funding

- This funding enables secondary schools to give senior learners access to structured workplace learning integrated with school-based learning.
<https://www.tec.govt.nz/funding/funding-and-performance/funding/fund-finder/gateway/>

Youth Guarantee (YG) Fund

- Initiatives funded through YG improve the transition from school to work, by providing a wider range of learning opportunities, making better use of the education network, and creating clear pathways from school to work and study.
<https://www.tec.govt.nz/funding/funding-and-performance/funding/fund-finder/youth-guarantee/>

National Centre for Tertiary Teaching Excellence

- This Centre contributes to educational outcomes for learners by working with tertiary education organisations to enhance the effectiveness of teaching and learning. The Centre supports the growth of capable and skilled learners by encouraging and enabling the sustainable improvement of tertiary teaching and learning.
<https://www.tec.govt.nz/funding/funding-and-performance/funding/fund-finder/national-centre-for-tertiary-teaching-excellence/>

2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

☒ Establishment of minimum norms and standards in education

- ☑ Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)
- ☑ Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

In New Zealand the Government sets minimum education standards for early childhood services and schools so that all children can gain access to education of good quality.

The Government funds licensed early childhood services and certificated playgroups (sections 308 and 311 of the Education Act). Administrative requirements and a Curriculum Framework are specified (sections 313 and 314), and licensing and certification provisions are also set out in legislation (sections 315- 319).

Ratios in early childhood services are regulated. This means that services must ensure that at all times there are at least minimum numbers of adults in contact with children aged 0-5. Ratios differ by the age of the children and whether the service is centre-based or home-based. The Education (Early Childhood Services) Regulations 2008 sets out the minimum standards for ratios in early learning services. Under Section 44, every licensed service provider must comply with the minimum adult:child ratios.

The Education (Early Childhood Services) Regulations 2008 also specify minimum standards for qualifications for the adults that teach children. The majority of children attend a teacher-led centre-based services (82% or 163,475 children in 2019). These services must employ 50% qualified and certificated teachers. There are also funding incentives for services that meet higher quality standards. Teacher-led centre-based services where 80%+ qualified and certificated teachers are meeting the minimum ratio requirements receive higher funding rates. 96% of teacher-led centre-based services are on the 80%+ qualified and certificated funding. From 1 January 2021, a new 100% qualified and certificated funding band will be available for services where the minimum ratios are made up of a fully qualified and certificated teaching workforce.

The Education Review Office (ERO) is a Government department, independent from the Ministry, which is tasked with evaluating and reporting publicly on the education and care of students in schools and early childhood services. ERO findings inform decisions and choices made by parents, teachers, managers and trustees at the individual school and early childhood level, and the national level by Government policy makers.

The Teaching Council is the professional body which sets the standards of quality for the teaching profession. As an independent statutory body, it is responsible for the registration and ongoing certification of teachers in New Zealand, supporting the processes needed to ensure teachers are competent, and administering the process for managing complaints about teachers. The Council sets a Code of Professional Responsibility and Standards for the Teaching Profession, and teachers must meet these standards in order to renew their certification. The Teaching Council deals with concerns about a teacher's competence or conduct through its disciplinary functions, including the quasi-judicial Complaints Assessment Committee and Disciplinary Tribunal. The Teaching Council also reviews and approves initial teacher education programmes, which lead to registration as a teacher.

For the state schooling system, teacher/ student ratios are set by Government to determine staffing entitlements at a whole school level. Schools may then choose how they use the staff allocated to their school and therefore the ratios in each classroom.

The framework for minimum education standards in the tertiary education sector is set out in the Education Act. This includes a section setting out key objectives (section 159AAA) and requiring a Tertiary Education Strategy (section 159AA). Section 160 gives institutions (colleges of education, polytechnics, specialist colleges, universities and wānanga) as much independence and freedom to make academic, operational and management decisions as is consistent with the nature of the services they provide, the efficient use of national resources, the national interest, and the demands of accountability. Under the Act, an express duty is placed on the councils of institutions to ensure that the institution does not discriminate unfairly against any person (section 181(d)).

Providers have a duty of pastoral care for domestic tertiary students under the Education (Pastoral Care of Domestic Tertiary Students) Interim Code of Practice 2019. The purpose of this code includes ensuring, so far as is practicable, that domestic tertiary students can succeed academically in a safe, healthy and supportive learning environment.

Providers that are signatories to the Education (Pastoral Care of International Students) Code of Practice 2016, have a duty of pastoral care for international students. This code is intended to support Government's objectives for international education by: requiring signatories to take all reasonable steps to protect international learners; and ensuring that international learners have a positive experience in New Zealand that supports their educational achievement.

NZQA has a role in ensuring that New Zealand qualifications are accepted as credible and robust, nationally and internationally. NZQA is responsible for managing the NZQF, administering the secondary school assessment system, and provides independent quality assurance of non-university tertiary education providers. Universities New Zealand is responsible for quality assurance of the university sector.

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to "substantially increase the supply of qualified teachers".

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

- ☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)
- ☒ Initial training and continuous professional development is provided
- ☒ Minimum standards and qualifications are required for the teaching profession
- ☒ Measures taken to strengthen the social status and attractiveness of the teaching profession
- ☐ Performance monitoring systems
- ☐ Measures taken to increase women in leadership positions in education
- ☐ Other:

- Please briefly elaborate further on the measures taken:

The legal framework for tertiary-level education provision (which is where teacher education is provided) does not permit discrimination with regard to eligibility for entry into the teaching profession in New Zealand (other than prohibitions on allowing people with criminal convictions to train as teachers). Criteria for entry to teacher training programmes relate to academic qualifications and dispositional qualities. These criteria vary across Initial Teacher Education (ITE) providers and between individual programmes. These are set by the tertiary education institutions that offer teacher education programmes. Teacher education programmes need to meet the standards set by the Teaching Council and by national quality assurance bodies.

Teachers are required to be registered and certificated by the Teaching Council. Teacher registration is a system for ensuring that there is a minimum quality standard applied to all teachers entering the general education system in New Zealand. Maintenance of a register assists boards of trustees and other employing bodies in making appointments, and reassures parents and the public that a national minimum standard for teaching profession is available.

It is a requirement for teacher registration that a person has completed an approved ITE programme, and these are all required to be at Level 7 of the NZQF (bachelor's level). Government subsidises the cost of tuition in tertiary education but students pay some fees; in addition, the Government provides scholarships for people doing ITE programmes, targeted at population groups who are less well represented in the teaching workforce, and also people training to teach subjects that are in shortage.

Teaching staff at tertiary education providers are not required to have formal qualifications, due to institutional autonomy. NZQA encourages teaching staff at tertiary education providers to have a level 5 teaching qualification and to undertake professional development. Qualification of teaching staff is a factor that NZQA takes into account when judging the quality of tertiary education providers through external evaluation and review. Government continues to fund access to professional learning and development for teachers via centrally managed funding and funding included in schools' operational grant, via a range of scholarships, study awards and sabbaticals provided for in the employment Collective Agreement.

Salaries

- Entry salary is assessed by the Ministry and takes into account academic qualifications, including any recognised teaching qualifications, any teaching experience and any relevant work experience.
- Collective Agreements for the schooling sector, which set the base salary scales, are bargained by the Ministry and the corresponding union every three years.
- The regular nature of Collective Agreement bargaining ensures that salaries are adjusted according to cultural and environmental factors on a regular basis.
- The salaries of those paid in other professions requiring similar or equivalent qualification are considered when bargaining.
- With the implementation of the 2019 collective agreements, the weighted average teacher salary is \$81,500 (2019). This will increase to \$88,200 with the final increment of the collective agreements in 2021.
- Weighted salaries represent the average teacher pay across each the three school sectors. Average salaries include:

1) Base Pay

2) Salary Unit Entitlements

3) Additional Teacher Allowances

- On average, Teacher salaries will have increased by 14% over the 4 years to 2021.

Minimum standards and qualifications are required for the teaching profession

- Professional standards for teachers are set out in the relevant collective agreements, in three categories: for beginning classroom teachers, classroom teachers and experienced classroom teachers. They are divided into the dimensions of
 - Professional knowledge
 - Professional Development (Secondary/Area)
 - Teaching Techniques
 - Student Management/Classroom Management
 - Motivation of Students
 - Te Reo me ona Tikanga (Secondary/Area)
 - Effective Communication/Communication
 - Support for and Co-operation with Colleagues
 - Contribution to Wider School Activities
- The Standards can be found in:
 - Schedule 3 of the Primary Teachers' Collective Agreement 2019-2022
 - Supplement 1 of the Secondary Teachers' Collective Agreement 2019-2022
 - Schedule 1 of the Area School Teachers' Collective Agreement 2019-2022.
- These Collective Agreements can be found at <https://www.education.govt.nz/school/people-and-employment/employment-agreements/collective-agreements/>
- The Teaching Council provides a Code of Practice and Standards for the Teaching Profession to maintain teacher certification and registration. Details of those can be found at <https://teachingcouncil.nz/sites/default/files/Our%20Code%20Our%20Standards%20web%20booklet%20FINAL.pdf>

Measures taken to strengthen the social status and attractiveness of the teaching profession

The Government has actioned the following to strengthen the attractiveness of the teaching profession:

- Supports are in place to increase the status of the teaching profession and to make teaching qualifications more accessible. The Government has invested in increasing

the number of New Zealand-trained teachers by making it easier to get into, return to, and stay in the profession.

- A number of scholarships and awards have been introduced, including a workplace-based Initial Teacher Education scheme that provides student teachers with the option of working while they train and a voluntary bonding scheme that rewards graduate teachers who agree to work in areas of need, by helping to reduce their student loans. TeachNZ also offers scholarships to support teacher training, with scholarship criteria weighted to address areas experiencing teacher supply pressure.
- There are a number of initiatives in place which aim to support existing teachers by allowing time and funding for continued learning. This includes study support grants; paid sabbatical leave and study awards.
- Attention has been given to the stories and value of those working in education and those training to become teachers. This has been done by highlighting the stories of scholarship recipients in a national campaign, as well as the introduction of the Prime Minister's Education Awards. These highlight and celebrate teaching best practice by schools, kura and early learning services across New Zealand.

Performance monitoring systems

- Each collective agreement sets out performance monitoring systems which include annual assessment against the professional standards. The expectations and process is set based on the category of teacher; Beginning, Fully certificated and Experienced Teachers. Boards, as employers, within this contractual framework, have the ability to set performance systems and expectations based on the context of their individual schools. Full details from the collective agreement can be found below.
- Clause 3.7.1 of the Primary Teachers' Collective Agreement 2019-2022 sets out as follows:

3.7.1 Progression for Base Scale Teachers including Unit Holders

- a. Annual Assessment against Professional Standards. For the purposes of determining annual progression from one step to the next, each teacher's performance will be assessed annually against the relevant professional standards as set out in Schedule 2 or 3 as appropriate; When setting performance expectations and development objectives with individual teachers for the coming year, the professional standards at the relevant level against which the teacher is to be assessed should be confirmed between the teacher and the employer;
- b. For each teacher to progress annually to their next step they will need to demonstrate that they meet the professional standards at the appropriate level;
- c. Beginning Teachers will have at least two annual assessments against the professional standards for the beginning teacher level before moving to the fully certificated level, except where the teacher and the employer agree that assessment against the beginning standards for more than one annual assessment is not appropriate because of the teacher's previous relevant experience. In such cases teachers may be assessed against the fully certificated teacher standards after one assessment against the beginning teacher standards;

- d. Fully Certificated Teachers will have at least three annual assessments against the professional standards for fully certificated teachers before moving to the experienced teacher level regardless of whether or not they have reached their qualifications maximum;
 - e. Experienced Teachers are teachers who have had at least three successful annual assessments against the Fully Certificated Teacher professional standards and who then meet the Experienced Teacher professional standards. Experienced Teachers will continue to be assessed annually against the experienced teacher professional standards.
- Clause 4.2.3 of the Secondary Teachers' Collective Agreement 2019-2022 sets out as follows:

4.2.3 Pay Progression

(a) Teachers shall progress to the appropriate base scale maximum shown on the scale subject to the employer attesting that the teacher has met the appropriate level of the Professional Standards for Secondary Teachers – Criteria for Quality Teaching appended as Supplement 1 to this agreement.

(b) Assessment against Professional Standards

(i) A beginning teacher may have up to two assessments against the beginning teacher standards or three if registration is delayed, before assessment against the classroom teacher standards. However, beginning teachers may be assessed against the classroom teacher standards from an earlier date if progress warrants it and the teacher and appraiser agree.

(ii) Teachers will be assessed against the classroom teacher criteria once fully registered or after two years in the case of teachers holding Limited Authority to Teach (LAT) status.

(iii) Classroom teachers may have three assessments against the classroom teacher standards but all teachers (including LATs) will be assessed against the experienced teacher standards once they have reached their appropriate base scale maxima. The only exception is teachers who have reached their base scale maxima before having up to two assessments against the beginning teacher standards (or three if registration is delayed) and up to three assessments against the classroom teacher standards. These teachers may have up to three beginning teacher standards assessments and up to three classroom teacher standards assessments before being assessed against the experienced teacher standards.

(iv) Teachers who hold units and who have assumed a specified leadership, pastoral, administrative or task-specific responsibility in respect of their unit or units will be assessed against the relevant criteria for teachers holding units together with the standards applicable to their level of experience in respect of their classroom teaching duties.

(c) When setting performance expectations and development objectives with individual teachers for the coming year, appraisers and the individual teachers shall have regard for:

(i) The number of years taught and the appropriate level of the professional standards to be applied;

(ii) The subject(s), the class level(s) and the nature of classes taught;

(iii) The degree to which achievement and development are expected within each criterion;

(iv) Any other agreed factors.

(d) Subject to 4.2.3 (a), (b) and (c) above, pay progression applies in the following ways:

(i) All full-time and permanent part-time teachers whose salary commencement is described by 4.2.2 (a) or (b) above shall, after completing one year on each step, progress to the appropriate qualifications maximum shown on the scale;

(ii) Teachers who do not have a subject/specialist qualification defined by a 'G' notation and who have not completed a recognised course of teacher education shall progress after completing one year on each step, to step 4 of the Base Scale – Untrained Teachers;

(iii) Non-permanent part-time teachers employed for fewer than 20 hours a week shall advance to the next step on completion of each 1000 hours. Credit towards each increment shall be based on class contact hours only and shall not include the 11% loading which applies in calculating salary. Salary credits will be calculated to the nearest month.

(iv) Short-term relievers shall progress from one step to the next upon completion of each 190 days or 950 hours' relieving service, subject to satisfactory performance as attested by the principal of a school where the teacher has recently been employed as a relief teacher.

- Clause 3.7 of the Area School Teachers' Collective Agreement 2019-2022 sets out as follows:

3.7.1 Annual Assessment against Professional Standards

(a) For the purposes of determining progression from one salary step to the next each teacher's performance will be assessed annually against the relevant professional standards.

(b) When setting performance expectations and development objectives with individual teachers for the coming year, appraisers and the individual teachers shall have regard for:

(i) the number of years taught and the appropriate level of the professional standards to be applied;

(ii) the subject(s), the class level(s) and the nature of classes taught;

(iii) the degree to which achievement and development are expected within each criterion;

(iv) any other agreed factors.

(c) For each teacher to progress to their next step they will need to demonstrate that they meet the professional standards at the appropriate level.

(d) Beginning classroom teachers will have at least two (2) annual assessments against the professional standards for the beginning teacher level before moving to the classroom teacher level, except where the teacher and the employer agree that assessment against the beginning standards for more than one annual assessment is not appropriate because of the teacher's previous relevant experience. In such cases teachers may be assessed against the classroom teacher standards after one assessment against the beginning teacher standards.

(e) Classroom teachers will have at least three (3) annual assessments against the professional standards for classroom teachers before moving

to the experienced classroom teacher level regardless of whether or not they have reached their qualifications maximum.

(f) Experienced Classroom Teachers are teachers who have had at least three (3) successful annual assessments against the classroom teacher professional standards and who then meet the experienced teacher professional standards. Experienced Classroom Teachers will continue to be assessed annually against the experienced teacher professional standards.

- The Teaching Council sets out expectations for teacher registration and certification based on evaluation against the standards set by the Teaching Council. There are three main practising certificate types depending on where teachers are in their teaching career. Currently it is a three year certification process, but moving to yearly in future. The full requirements for practising certificates can be found at <https://teachingcouncil.nz/content/requirements-practising-certificates>.

- Have there been instances of discrimination as regards the training for education personnel in your country?

☐ Yes: Has your government addressed this issue?

☐ Yes

☐ No

☒ No

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹⁶ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

☒ Curriculum includes human rights education

☒ Educational and/or extracurricular activities are organized on human rights education

☐ Other:

The New Zealand Curriculum sets out eight principles that should underpin all school decision making in New Zealand schools. These principles put students at the centre of their learning and include concepts about cultural diversity, inclusion, community engagement, and the Te Tiriti/ the Treaty. Through this, human rights education can be taught across the curriculum, and can be found in social studies from the early curriculum levels.

Recent curriculum resources that promote human rights education include a series of products designed to challenge racism and promote diversity (the Not Part of My World:

¹⁶

Which calls on states to "ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture's contribution to sustainable development".

Challenging Racism classroom kit; *The Same Game* story book), and *Pūtātara: A Call to Action* and *Climate Change: Prepare today, live well tomorrow*, which look to environmental sustainability and focus on participation for change. The Ministry is also in the process of refreshing the Sexuality Education Guidelines (2015) to strengthen Māori and Pacific views of sexuality, and LGBTIQ+ and disability content, with input from the Human Rights Commission.

Te Marautanga o Aotearoa is the national curriculum for those learners who are learning through te reo Māori. The centre post of this Curriculum is founded on the aspiration to develop successful learners, who will grow as competent and confident learners, effective communicators in the Māori world, healthy of mind, body and soul and secure in their identity, and sense of belonging.

All learners should have the opportunity to acquire knowledge in all learning areas and to develop key competencies. Through this approach, they will be able to reach their full potential, and to participate effectively and positively in the Māori community and the global world.

The school-based curriculum provides for learning programmes which affirm and revitalise Māori language and culture. The primary aim is that the learner will be confident in the Māori world. Second, the school based curriculum will provide experiences that enable the learner to participate in the wider society.

One of the key values of this curriculum is that the learner is respectful of the mana and spirituality of each person and each whānau, and their attitudes and values, even if these differ from their own. Through this underpinning value, human rights education is able to be taught and weaved throughout the curriculum and learning experiences.

Curriculum resources based on the Tikanga-ā-lwi Wāhanga Ako (learning area) allow learners to develop a critical examination of human social behaviour, to gain an understanding of their world. Tikanga-ā-lwi also examines the ways people meet their physical, social, emotional and spiritual needs.

In Tikanga-ā-lwi students develop knowledge of the diverse and dynamic nature of society and gain an understanding of the complexity of human behaviour. Through this, students will be informed, be constructively critical, and be able to participate responsibly in shaping society. Te Tiriti/ the Treaty and its historical and contemporary relevance is a major underlying principle in this learning area.

Students develop an understanding of their own identity through a focus on the people, the events and the influences that have contributed towards shaping New Zealand society. Additionally, students will study peoples and communities beyond New Zealand, and their worldviews. Through Tikanga-ā-lwi students will have an opportunity to investigate current events, to develop knowledge and understanding of significant events and people in their local community, in the national community and in the global community.

This learning area and accompanying curriculum resources allow for human rights to be examined and considered in a local and global context.

As part of the School Leavers' Toolkit we have created:

- Civics resources that can be used for years 1-13. The two major themes of these resources are belonging and living together in New Zealand and the process of decision making in Government. This resource includes activities a teacher can do with students to help them understand their rights and how these are protected.
- A School leavers' Toolkit website for student's that has a section focussing on personal wellbeing. This area covers topics such as harassment and bullying, gender identity and sexuality, and racism and other forms of discrimination. This is a self-

directed website that students can access either with a teacher or on their own volition.

The Ministry and the Human Rights Commission are working together to support students to understand inclusion and diversity in New Zealand. The aim is to produce a resource that will:

- Increase knowledge and understanding of viewers/ users on diversity and inclusion
- Increase knowledge and understanding of what harassment, including subtle harassment, can look like in school and in the workplace; and
- Instil confidence and inspire action from viewers who may be being harassed /discriminated against or seeing harassment / discrimination, and identify options of where they can go for help.

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

Yes ☒ No ☐

- Please provide a brief description:

New Zealand has legal frameworks for the provision of early childhood education, compulsory schooling (primary and secondary schools) and further education including technical, vocational and higher academic education.

ECE is not compulsory, however around 97 percent of children attend prior to attending school. Almost all ECE services are independent of government and are either private businesses, or community-based or not-for-profit organisations. There are six broad service types, each with different requirements and funding rates - education and care providers (including kindergartens), home-based education and care, hospital based and casual education and care, kōhanga reo, playcentres and playgroups. Centre-based ECE services may have different operating structures, philosophies and affiliations, and are known by many different names – e.g. Montessori, kindergartens, crèches, preschools, a’oga amata (predominantly for Samoan children), and Rudolf Steiner. All services are licensed under the Education (Early Childhood Services) Regulations 2008, with the exception of playgroups, which are certificated under the Education (Playgroups) Regulations 2008. These regulations prescribe minimum standards that each service must meet. Licensing criteria are used to assess how the centres meet the minimum standards required by the regulations.

There are three main types of primary and secondary schools. State schools are fully government funded and owned. State integrated schools offer education with a special character (a philosophical or religious belief). State-integrated schools receive the same government funding for each student as do other State schools but their buildings and land are privately owned, so they usually charge compulsory fees called “attendance dues” to meet property costs. Private schools may also be established and registered under the Education Act 1989. Private schools charge fees, but also receive some student funding from the government. They are governed by private entities and must meet certain minimum standards to be registered with the Ministry. Private school managers have considerable freedom in how they run their school and the curriculum they teach. They are able to provide education opportunity for families to receive religious and other culturally diverse education. Private schools may use pedagogy and curricula other than that used in State schools. They must, however, have suitable premises, teaching staff, ensure the school environment is a

physically and emotionally safe place, and provide their students a standard of tuition no lower than that given to students enrolled at State schools of the same class levels.

As at 1 July 2019, the number of State, State-integrated and private schools in New Zealand was 2,534. Of these, 91 were private schools (86 fully registered and 5 provisionally registered). Private schools are therefore approximately 3.6% of the schooling network across the country.

New Zealand's further education providers are largely publicly funded (8 universities, 3 Wānanga, 18 Institutes of Technology and Polytechnics). However, private training establishments (PTEs) may be established and registered under the Education Act 1989. PTEs are operated by a wide range of companies, trusts and other entities, and offer post-school education or vocational training. These are diverse in terms of their scale of operation, location, ethnicity, culture and areas of educational expertise.

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹⁷ explicitly apply to private educational institutions?

Yes ☒ No ☐

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

All private educational institutions, including private schools and PTEs, are subject to the Human Rights Act 1993.

With some limited exceptions (noted below), private educational institutions are not permitted to discriminate against students on the grounds of sex, marital status, religious belief, colour, race or ethnic origins, disability age, political opinion, employment or family status or sexual orientation, where such a breach would result in:

- The refusal or failure to admit a person as a pupil or student; or
- The admittance of a person as a pupil or a student on less favourable terms and conditions than would otherwise be made available; or
- The denial or restricted access to any benefits or services provided by the establishment; or
- The exclusion of a person as a pupil or a student or subject him or her to any other detriment.

The exceptions are that educational establishments providing services for students of one sex, race, or religious belief, a particular disability, or age group, are not breaching the Act if they refuse to admit students of a different sex, race, or religious belief, disability or age. It is also not unlawful for an educational establishment to deny access to services to a person whose disability is such that they require special services or facilities that cannot reasonably be made available or where the disability risks harm to themselves or others (unless the establishment could take reasonable measures to reduce the risk to normal).

An organisation or association may provide preferential access to training facilities where a person has special training needs because they have not been engaged in regular full-time employment. Such bodies may also provide training, facilities or opportunities for training for people above a particular age or age group.

¹⁷ See: Article/Paragraph 1(1).

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

Yes ☐ No ☐

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation protect the right to education of national minorities
- ☐ Legislation or regulations guarantee the right of national minorities to study in their mother tongue
- ☐ Curriculum is adapted to national minority needs
- ☐ Teachers are trained to adapt to national minority needs
- ☐ Other:

- Please provide a brief description of the provisions:

There are avenues available for national minorities to establish their own schools to carry out their own educational activities, including the use or teaching of their own language, and if desired, the practice of their own religion in secular schools but also outside secular teaching time.

The aims, purpose and objectives of a kura kaupapa Māori will reflect the Te Aho Matua philosophy (though this will not necessarily be true of older kura). Te Aho Matua is a Kura Kaupapa Māori learning and teaching approach, or a set of Māori philosophies that guides the teaching of the school. It was developed by the founders of Kura Kaupapa Māori to incorporate Māori cultural and spiritual beliefs, values and practices in its teaching and learning approaches, and complements state school requirements.

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

As note previously, English, te reo Māori and New Zealand Sign Language are official languages of New Zealand. English is the language used by the majority of the New Zealand population, and is the language of instruction in most schools. The diversity of the New Zealand population means that a variety of other languages are also spoken in New Zealand.

The Ministry has been working to refresh both Ka Hikitia (Māori Education Strategy) and Tau Mai Te Reo (Māori Language in Education Strategy), as part of the Education Work Programme (EWP). The existing strategies were both due to expire in 2017, but were

extended and continued to provide the strategic framework for Māori Education and Māori Language in Education, during the period under review. The new strategies were launched in July 2020.

The EWP reviews key aspects of the education system in order to build a high quality public education system for all New Zealanders. To do this, each of the work streams must include explicit consideration of the impact for Māori and Pacific students.

The Māori language is a taonga (highly prized/ treasure) of iwi and Māori and an integral part of the national identity of New Zealand. There have been efforts to encourage its greater usage in New Zealand. In 2016, the Government introduced into law Te Ture mō Te Reo Māori (Māori Language Act) 2016. The legislation recognises that iwi and Māori are kaitiaki of te reo Māori, while recognising that the Crown is able to advance the revitalisation of the Māori language by promoting strategic objectives in the wider New Zealand society. As part of this in 2018, the Maihi Karauna was introduced, which is the Crown's Strategy for Māori Language Revitalisation. This set out a bold vision for te reo Māori in the future, and set out what actions the Government would prioritise from 2019 to 2023 to move towards that vision.

Despite efforts by iwi and the Crown, the health of the language remains delicate. The most recent Census results show an overall decline in the percentage of Māori who rates themselves as either 'very well' or 'well' in each of the follow areas: able to speak te reo Māori; able to understand te reo Māori; able to read te reo Māori; able to write te reo Māori. However, there was an increase in the percentage of Māori between 15 and 24 years old in each of these areas.¹⁸

This may be a reflection of signs of progress in the education sector. There has been a continued increase in participation in Māori language in education, including an increase in the number of students participating in Māori medium education, from 18,470 in 2016 to 21,489 in 2019.¹⁹ There has also been an increase in participation in Māori language in English medium education, from 161,381 in 2016 to 179,810 in 2019.

The Government also recognises the need to support Pacific languages in New Zealand, including the languages of the Pacific realm countries Cook Islands, Niue and Tokelau.

Pacific peoples and their identities, languages and cultures have a special status within New Zealand society, informed by New Zealand's geographic position as a country in the Pacific, and different legal obligations and expectations between individual Pacific nations and New Zealand. This includes constitutional relationships with Pacific realm countries and the Treaty of Friendship, which are unique to New Zealand; the history of Pacific populations in New Zealand, the size of Pacific populations in New Zealand²⁰ and growing populations with Pacific heritage in New Zealand. The growing potential impact of climate change and its threat to the physical nationhood of some Pacific countries also shapes the nature of New Zealand's relationship with the Pacific.

Pacific languages are reflected in the New Zealand education system through the valuing, promotion and integration of identity, language and culture, and enabling second language learning of Pacific languages and Pacific bilingual and immersion education, both in the early learning and schooling sectors. *Tapasā*, the cultural competencies framework for teachers of Pacific learners, identifies understanding and valuing the identities, languages and cultures of Pacific languages as a key competency. This is supported by the ongoing development of curriculum resources in Pacific languages, including the development of six storybooks and teaching materials in gagana Tokelau in 2019.

¹⁸ Comparison of data from Te Kupenga 2013 and Te Kupenga 2018

¹⁹ Education Counts, [Māori Language in Schooling](#)

²⁰ http://archive.stats.govt.nz/browse_for_stats/population/estimates_and_projections/SubnationalEthnicPopulationProjections_MR13base-2038update.aspx

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states to eliminate and prevent discrimination in education based notably on national origin.²¹ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,²² demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to “ensure equal access to all levels of education and vocational training for the vulnerable”, including “children in vulnerable situations”, and covers the majority of SDG4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

As noted previously, the Education Act 1989 section 3 sets out the right to free enrolment and free education in any state school for every person who is not an international student aged 5–19. Section 8 explicitly provides that people who have special education needs, whether because of disability or otherwise, have the same rights to enrol and receive education at State schools as people who do not.

A domestic student is defined by the Education Act as a New Zealand citizen, the holder of a residence class visa or someone in a class specified by the Minister of Education by Notice in the Gazette (<https://gazette.govt.nz/notice/id/2013-go545>). This definition and the classes specified in the Notice cover those granted refugee status as well as applicants for refugee status whose case is still being determined, and migrants. Domestic student status gives the same rights to, and quality of, education that is afforded to all citizens. Students who do not meet any of the aforementioned criteria and are in New Zealand unlawfully can apply to the Ministry to enrol as a domestic student under certain conditions as specified in paragraph (n) of the Notice. (<https://www.education.govt.nz/school/managing-and-supporting-students/enrolling-students/enrolling-students-as-domestic-students-who-are-living-unlawfully-in-new-zealand/>).

The Education Act 1989 (Cl 5(2)(a), Schedule 6) provides that a board must:

(a) ensure that the school—

- (i) is a physically and emotionally safe place for all students and staff; and
- (ii) is inclusive of and caters for students with differing needs.

The Human Rights Act 1993 states that it is unlawful to treat people differently on various grounds in specific areas of life, including the provision of education.

The New Zealand Child and Youth Wellbeing Strategy recognises that having access to quality education is one of the factors that is essential to the wellbeing of every child and young person in New Zealand. This strategy informs the Ministry's work, especially towards ensuring children and young people are learning and developing.

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

☒ Inclusion in mainstream education

²¹ Articles/Paragraphs 1 and 3.

²² Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

- ☐ Provision of language courses
- ☒ Specific training for educational staff
- ☒ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance
- ☒ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- ☒ Accelerated learning programmes
- ☐ Non-formal and/or alternative education programmes
- ☒ Financial support
- ☒ Other innovative measures:

Bilingual support workers in schools

Please briefly elaborate further on the measures taken:

Supporting ESOL teacher capability

Initiatives funded by the Government include:

- Teaching English in Schools to Speakers of Other Languages tuition fees scholarships for teachers to work towards a specialist ESOL qualification. Scholarships are available for teachers of Pacific Island background, migrant, and international students.
- Pasifika Teacher Aide Project, which is specifically designed to support teachers and teacher aides working alongside Pacific Island background learners in mainstream classrooms. Bilingual pedagogies are the focus of this professional development.
- Team Approach to Language Learning initiative, which takes a fresh approach to professional and learning development. The project takes a holistic approach to designing support programmes for culturally and linguistically diverse learners, combining a mix of school visits, workshops and online modules. It is designed to be responsive to schools, working with senior leadership to address the specific needs of teachers, teaching assistants and English language learners.
- Professional Learning Clusters for ESOL teachers/ teacher aides. Early learning, primary and secondary school ESOL teachers and paraprofessionals meet once a term for professional discussion and sharing of resources and ideas.
- 'Learning Village NZ' online teaching and learning project for students in years 7 – 13. Schools involved with this project funded by the Ministry, receive training, both face to face and virtually for a teacher and teacher aide to support the students. The goal is for the staff members to gain professional development to sustain ESOL teaching capability in their schools, even if there are no longer students on the programme.
- Online resource, 'Working With English Language Learners', freely available for teachers and teacher aides. This is planned to be refreshed in 2020/21.

Translation/ Interpreting

- As part of the Ministry's response to COVID-19 several documents were translated, providing key material for parents about some of the changes in education, in a

total of 22 languages. These included Bilingual assessment information for parents, Resolving Problems at School information, and Early Learning information.

- A 24 hour 7 days a week telephone translating service to help the Learning Support staff to ensure families understand their child's special needs.
- Bilingual Support workers in up to 50 schools each year, for schools which have identified a number of students speaking the same language who would benefit from bilingual support.
- Refugee bilingual tutors for schools with former refugee students.

Information Technology

- Computers and computer literacy training for newly arrived refugee families with school age children, including additional computers to large families during New Zealand's COVID-19 lockdown, as it became apparent that one device was not sufficient with all children learning remotely, and parents often working remotely.

Additional Targeted Support for Schools

- ESOL funding for schools to provide specialised ESOL programmes for eligible students, including additional funding to support former refugee students.
- Online and hard copy resources for schools to support their teaching of migrant and former refugee students.
- A team of 15 staff to support schools and communities working with migrant and former refugee students.

Challenging racism classroom resources

- Refer to initiatives on page 12.
- Defining diversity activities are designed to assist Boards of Trustees, senior management, teachers, and parents to deepen their understanding of cultural diversity and encourage the development of culturally appropriate responses. These available online at <https://nzcurriculum.tki.org.nz/Principles/Cultural-diversity-principle/Defining-Diversity-activities#collapsible1>

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

- ☒ Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

Addressing the impacts of socio-economic disadvantage on learners' outcomes is critical to ensuring all New Zealanders are supported to achieve their full potential. This is aligned with the New Zealand Government's Child and Youth Wellbeing Strategy.

The Ministry is exploring the replacement of the school decile system with an Equity Index. The Equity Index estimates the extent to which children grow up in socio-economically disadvantaged circumstances known to be associated with their likelihood of achieving in education. As part of this work the Ministry commissioned an independent report *Removing the Decile Label*. The Equity Index considers the whole school population when assessing the level of disadvantage in a school. The Equity Index also uses a broad measure of educational success that considers the spectrum of students' achievement across NCEA. This gives a more nuanced view of the equity challenge at each schools.

More information can be found at the following link: <https://www.education.govt.nz/our-work/information-releases/issue-specific-releases/equity/>

- ☑ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

There are ongoing shortages of qualified teachers at the secondary school level, and these are projected to continue for some years. Anecdotally, the shortages are particularly pronounced in STEM subjects and in te reo Māori.

There are also challenges in the consistency of teaching quality, with recognised issues including lack of cultural responsiveness, bias and inclusion of students with disability and/or learning support needs. These issues continue to be the focus of funding for professional learning development for teachers.

- ☑ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

In 2018, New Zealand commissioned an Independent Taskforce (the Taskforce) to review the governance, management, and administration of the compulsory schooling system, and to consider whether the *Tomorrow's Schools* model (introduced in 1989) is fit-for-purpose to serve the learners of today and in the decades ahead. The *Tomorrow's Schools* reforms of 1989 introduced a highly devolved system of largely self-managing schools, each with their own Board of Trustees (the governing body of the school). While a lot has changed within New Zealand's schooling system in the last three decades, including a wholesale change of the senior secondary school qualification system in the early 2000s, the fundamental structure and governance of schools introduced by the 1989 reforms remain in place. In its review of the system, the Tomorrow's Schools Taskforce concluded that while the existing system has many strengths and serves most of New Zealand's school students well, the system faces some challenges in delivering equitably for all children and young people.

While the design of New Zealand's system (where schools largely operate as autonomous, self-managing entities) works well for many schools, it is not without its challenges. While the highly devolved system of school governance empowers schools with greater flexibility to be responsive to diverse needs and aspirations of the communities they serve, schools are largely left to operate on their own, often with slow and uneven transfers of professional knowledge, skills, and best practice, as well as duplication of effort. This has resulted in wide variability in learners' outcomes, both across and within schools. The nature of the relationship between schools and central government can also be highly

variable, and there is an opportunity for the system to be more cohesive and connected across all levels of the system.

While these challenges do exist, however, New Zealand has an extensive work programme underway to strengthen the education system, from early childhood education through to tertiary and beyond, including work to overcome challenges in the schooling system (and its governance). In 2019, the Government issued a response to the Tomorrow's Schools Taskforce, which commits to an ambitious programme of work to transform and strength the system, so that schools will be better-placed to serve all learners well, with better targeted and earlier support, stronger leadership support structures, more collaboration between schools and a renewed relationship between schools and the centre.

☐ Other:

- 1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education
- ☐ Increased public awareness through advocacy material on the Convention/ Recommendation or the core principles of the right to education
- ☒ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments

☐ Other: